City of TORRANCE California

Date: September 1, 2026

To: Honorable Mayor and Members of the City Council

From: Planning Commission
Michelle Ramirez, Community Development Director

By: Yolanda Gomez, Planning Associate | YGomez@TorranceCA.gov

Subject: Planning Commission and Community Development – Conduct a Public Hearing and Adopt **RESOLUTIONS** to Deny an Appeal and Uphold the Planning Commission's Approval of a Precise Plan of Development, in Conjunction with a Waiver of Setback Requirements, to Allow First and Second Story Additions and Attached Basement Level One-Car Garage to an Existing Three-Story Single Family Residence at 459 Via El Chico (APN: 7531-016-054) and Determine a Categorical Exemption from the California Environmental Quality Act (CEQA). Expenditure: None.

RECOMMENDATION

Recommendation of the Planning Commission and Community Development Director that City Council:

1. Conduct a public hearing; and
2. Deny the appeal; and
3. Determine a Categorical Exemption from the California Environmental Quality Act (CEQA); Article 19, Section 15301 (Existing Facilities) and 15305 (Minor Alterations); and
4. Adopt **RESOLUTIONS** for the approval of Precise Plan of Development (PRE25-00005) to allow the construction of first and second story additions and attached basement level one-car garage to an existing three-story single-family residence, in conjunction with Waiver (WAV25-00003) of the setback requirements, on property located within the Hillside Overlay (R-H) District, in the Single Family Residential (R-1) Zone (APN: 7531-016-054).

FUNDING

None Required.

DISCUSSION

Project Overview
The project applicant, Nagy Bakhoum (John and Renee Groblewski) requests approval by the City Council to allow one and two-story additions and an attached one-car garage, in conjunction with approval of setback requirements to an existing three-story, single-family residence, on property located within the R-H in the R-1 Zone.

The Appeal Form (Attachment 3) did not indicate a reason for appeal, merely stating “Don’t agree with the Planning Commission decision”. Earlier correspondence from the appellant received April 10, 2026, indicated that the subject residence was already a large home, adding to it would make it one of the larger homes in the vicinity. The appellant did not believe the applicant had a hardship to approve the Setback Waiver, indicating that the home could be remodeled within its existing footprint to provide the additional area requested. The appellant also mentioned light, air and privacy impacts to his property. As discussed below and in the May 6, 2026, Planning Commission staff report, which provides the complete analysis of the project, Planning staff did not observe any substantial potential for air or light impacts, and minimal privacy impacts (Attachment 6).

General Plan Land Use Designation

The project site has a General Plan Land Use designation of Low Density Residential (R-LO). This designation is generally characterized by one and two-story single-family residences on individual lots, forming a cohesive neighborhood. The designation allows up to nine dwelling units per acre. The proposed construction of one and two-story additions, and a basement level garage to an existing three-story single-family residence is consistent with the land use designation.

Zoning Designation and Adjacent Land Uses

The project site is designated as R-1 Zoning and within the R-H District and surrounded by properties that share the same zoning designation and overlay, and are developed with similar land uses, except for the property to the southeast beyond the cul-de-sac turnaround, which is a City park.

Project Site

The subject site is an irregularly shaped parcel with a slight radius at the frontage. It measures 9,874 sq. ft., with a front radius width of 89.73 ft. shrinking to 33.63 ft. at the furthest rear, 123.89 ft. along the longest eastern side, 55 ft. along the shorter eastern side, and 98.98 ft. along the western side. The existing residence is oriented northeasterly on the northern side of Via el Chico, and is located one home away from the street’s cul-de-sac, towards the east. The subject property is currently developed with a three-story, single-family residence with an attached three-car garage, originally constructed in 1978. The lot slopes drastically downward from street level to rear of property (south to north) and is considered a down-sloping lot for height calculations, and also slopes downward from west to east, following the street contours.

The residences across the street appear to be at a slightly higher elevation and also follow the general contours of the street’s slope. The majority of the homes on either side of the street are three stories, like the subject site, with a basement level generally developed with a garage and two living floors above it, taking advantage of the slope.

The existing residence with basement garage was approved via a Planning Commission Review (PCR 75-5) and Environmental Assessment (EA 75-5) in September 1975. This development was approved prior to the Hillside Overlay District Ordinance, which was adopted in 1977.

Hillside Overlay

The proposed project requires approval of a Precise Plan of Development (PRE) to allow a development that exceeds the following: construction above 14’ in height and an addition above one-story. A Waiver of the Setback Requirements (WAV) is also required, irrespective of the overlay, discussed in the WAV paragraph below.

The proposed additions result in a total Floor Area Ratio (FAR) of 0.59 and provides a height of 17.05 ft. for the additions. Staff notes that the maximum height permitted in the R-1 Zone is 27 ft. for a two-story. Three-story heights are silent in the R-1 Code; however, this project, while a three-story, is below the two-story height limits. Staff notes that heights in down-sloping lots are not measured from Lowest Adjacent Grade (LAG), but rather from the right-of-way, front Top of Curb (TOC) per Torrance Municipal Code (TMC) Section 91.41.7(c).

Staff solicited input from the neighbors and left business cards for the neighboring properties on Via el Chico and Susana Avenue on April 7, 2026. On April 10, 2026, staff received correspondence from the neighbor at 23719 Susana Avenue, noting light, air, and privacy impacts (Attachment 6). In that correspondence, this neighbor asked that the applicant remove all windows on the second floor of the addition that face east, and that the addition's roofline be changed to a flat roof with ceiling heights not exceeding 8 ft., which would resolve his concerns.

Staff notes that this neighbor's property is located within the R-H Overlay, and the existing single family residence (SFR) would be protected by the Hillside Overlay Ordinance. The neighbor's SFR is located at the bottom of the sloped property, fronting Susana Avenue, approximately 100 feet from the subject property. However, the neighbor's property was recently approved for redevelopment, and currently under construction to include an Accessory Dwelling Unit (ADU) at mid-slope and two SB-9 dwelling units at the top rear of the property adjacent to the proposed project. Both the ADU and the SB-9 units were not subject to the Hillside Overlay Ordinance's subjective development standards; therefore, it has been the consistent custom and practice of the City of Torrance that if a property is not subject to the burdens of the Hillside Overlay Ordinance, then it cannot benefit from it. The standard has been applied consistently over the years to properties that are not in the R-H Overlay, whether within the City of Torrance as in this case or in an adjacent municipality, such as, Rancho Palos Verdes.

Even if the Hillside Overlay Ordinance were to apply to the ADU and SB-9 units, which staff believes it does not for the reasons stated above, then the City of Torrance custom and practice regarding acquired views would come into play. Views and privacy that existed at the time the Hillside Overlay Ordinance was adopted are considered original views and privacy and receive the most protection. Most of the homes on Via El Chico as well as other nearby streets, are original three-story homes, and maintain their original view and privacy protections, as they pre-date the Hillside Overlay Ordinance. For newer constructions, additions, or remodels, it has been the custom and practice of the City of Torrance that acquired views and privacy receive less protection than original views. The neighbor's ADU and SB-9 units are under construction and therefore, the views and privacy do not exist yet. Any views or privacy would be subject to the City of Torrance's custom and practice of acquired views and therefore, would not be entitled to as much protection as a home with an original view. As stated above, the neighbor's original home at the bottom of the slope fronting Susana Avenue would have full Hillside Overlay Ordinance protections, but staff observed the impacts to privacy to be minimal.

During staff's site visit of April 13, 2026, to this neighbor's home, the neighbor pointed out the inside and outside areas of the four units on his property and noted the following impacts, followed by staff's assessment:

- Westmost SB-9 unit's second floor living room: impacts to privacy from a window. *Staff observed minimal privacy impacts as less than half of the proposed project's silhouette*

was visible from two narrow windows. First floor impacts to privacy from large windows, no impact.

- Westmost SB-9's west outside patio: impacts to privacy from various levels. *Staff observed partial silhouette*.
- ADU's living room and kitchen: impacts to privacy. *Staff observed mostly the east elevation's second floor silhouette*.
- ADU's west outside patio: impacts to privacy. *Staff observed only the top portion of the silhouette, which may include partial second floor windows*.
- SFR's rear yard: impacts to privacy. *Staff observed partial silhouette, mostly the northerly elevation, from flat areas of the yard, which is approximately 100 ft. from the addition. No access provided inside the SFR*.

To summarize, staff notes that there are four, floor to ceiling, windows proposed on the second floor, which would not substantially overlook the neighbor's single-family residence (SFR) located below on Susana, as the proposed windows face eastward. Staff notes that there is an existing large window on the east elevation of the second floor, so adding additional windows would not worsen the existing condition. Staff also notes three proposed windows on the north elevation on both floors, which are adjacent to an existing bank of windows on both floors. In staff's judgment, these new windows would not worsen the existing conditions and therefore, would not be considered adverse impacts to privacy. In staff's judgment, in reference to air and light, these minor additions would not substantially impact either, as the existing home is 6'-8 ¾" higher than the proposed additions, and the additions are tucked in lower and east of the existing home. In staff's judgment, typical air flow from the west and light in the early evening towards sunset from the west would not substantially be impeded by the lower additions, as they would be blocked by the higher existing home.

Staff received correspondence from many neighbors in support of the project (Attachment 6). As of the completion of this report, staff has not received any further correspondence.

Waiver

Per TMC Section 94.2.1, the Planning Commission may grant a WAV of development standards relating to the front, rear, and side yard requirements, court requirements, building/structure heights, and distances between buildings. The decision of the Planning Commission may be appealed to the City Council pursuant to TMC Section 11.5.1.

As discussed in the previous Planning Commission staff report (Attachment 6), the front placement of the proposed basement level, first and second-story additions would require meeting the average front setback and the minimum front yard dimension. The plans show the average as 18.13', shy of the 20' minimum, and the minimum front yard dimension as 14'-9 ¼", which is just shy of the 15 ft. minimum, both requiring approval of a WAV.

A waiver may be granted if, in the judgment of the City Council:

a) Unreasonable difficulties will result from the strict enforcement of this Division;
b) It will not be materially detrimental to the public welfare or to the property of other persons located in the vicinity thereof; and
c) It will not substantially interfere with the orderly development of the City as provided for in this Division.

The applicant was required to provide facts to substantiate criteria, by which the Planning Commission may grant WAV25-00003 (Attachment 6). Staff attempted to contact the adjacent neighbors, but as of the completion of this Report, only one response was received, from the next-door neighbor at 23719 Susana Avenue, mentioning that the east side yard WAV should not be approved. Staff notes that no WAV is required for the east side yard, as 13'-10 ¾" is proposed, far exceeding the minimum side yard setback of 9'-10 1/4" for this property. The rest of this correspondence referred to R-H impacts, which were discussed in the above R-H paragraph. The remainder of the setbacks meet and/or exceed the setback requirements and do not require a WAV.

In the judgment of staff, this request to allow the reduction of the required average front yard setback, and the minimum front yard dimension, satisfies the hardship criteria for approving WAV25-00003. In order to meet the setback requirements and add more space to the home, the addition would need to be relocated at grade level, where only a small usable rear yard currently exists, as the topography of the property slopes drastically downward towards the rear, and provides for unusable rear yard area. Developing along the rear would also eliminate the circulation access to the existing garages that face northerly and are accessed from the rear. While the property is large at 9,874 sq. ft., it is irregularly shaped and provides limited building pad area due to the sloped topography of the lot, providing added difficulty in designing additions. No active complaints are on file. The approval of lesser setbacks along the frontage do not appear to impact any neighbors, as there is no expectation of privacy along a property's frontage, and no correspondence was received regarding the front setbacks. Granting WAV25-00003 will not interfere with the orderly development of the City, as the proposed improvements will maintain the land use, as a single-family residence, complying with the Zoning and General Plan designation.

Previous Hearings and Publications

A previous public hearing was held in accordance with the TMC and applicable noticing requirements.

The project was previously considered by the Planning Commission at its meeting date of May 6, 2026. Following approximately 30 minutes of public testimony and Commission discussion, the Planning Commission approved the project by a 4-0 roll call vote. Voting in favor were Commissioners Borgialli, Riggs, Turner, and Chair Kartsonis. Commissioners Anunson, Obejas, and Yeh were absent.

A timely appeal of the Planning Commission's decision was filed on May 14, 2026.

In accordance with the TMC, notice of the City Council public hearing to consider the appeal of the Planning Commission's approval of the PRE and WAV for the subject project was provided at least 10 calendar days before the City Council's meeting date of September 1, 2026. Notice of the hearing was also posted at the project site, mailed to all property owners within a 500-foot radius of the project's exterior boundaries, and published in The Daily Breeze.

Conclusion

The applicant has submitted a project that complies with all applicable requirements of the TMC, with the exception of the required front yard setbacks, which are addressed through the requested WAV.

In staff's judgment, the proposed three-story additions conform to the planning and design provisions of the Hillside Overlay District and would not result in a substantial adverse impact on the views, light, air, or privacy of neighboring properties. As conditioned, the project has been designed to minimize potential impacts through the strategic placement of the proposed additions along the eastern portion of the property. In addition, the project provides side and rear yard setbacks that exceed TMC requirements.

Although the proposed front yard average and minimum setbacks are less than those required by the TMC, staff finds that the project satisfies the required findings to support approval of the requested Waiver. Staff received numerous letters in support of the project and one letter in opposition. While the opposing correspondence raised concerns regarding impacts to light, air, and privacy, staff determined that the proposed additions would not result in substantial adverse impacts in these areas.

The proposed project is compatible with the surrounding residential neighborhood and represents an appropriate use of the property. Except for the requested setback modifications, the project complies with all applicable objective development standards of the R-1 Zone and is consistent with the Low Density Residential (R-LO) General Plan land use designation. Staff further finds that the requested setback reductions will not interfere with the orderly development of the City, as the project will maintain the existing single-family residential use in conformance with the property's zoning and General Plan designation.

Accordingly, staff recommends that the City Council **deny the appeal** and **approve the project**, subject to the recommended conditions of approval.

ENVIRONMENTAL FINDINGS

The project is categorically exempt from the California Environmental Quality Act (CEQA) pursuant to CEQA Guidelines Article 19, Sections 15301 (Existing Facilities) and 15305 (Minor Alterations in Land Use Limitations).

ATTACHMENTS

1. Resolutions for Approval
2. Location and Zoning Maps
3. Appeal Filing
4. Project Plans
5. Planning Commission Meeting Minutes Excerpt (May 6, 2026)
6. Planning Commission Staff Report (May 6, 2026)
7. Correspondence (Post-Planning Commission Meetings)
8. Proof of Publication and Notification (Materials Available)

ATTACHMENT 1

RESOLUTION NO. 2026-0XX

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF TORRANCE, CALIFORNIA, DENYING AN APPEAL AND UPHOLDING THE PLANNING COMMISSION APPROVAL OF A PRECISE PLAN OF DEVELOPMENT, IN CONJUNCTION WITH A WAIVER OF SETBACK REQUIREMENTS, AS PROVIDED FOR IN DIVISION 9, CHAPTER 1, ARTICLE 41 OF THE TORRANCE MUNICIPAL CODE, TO ALLOW FIRST AND SECOND STORY ADDITIONS AND ATTACHED BASEMENT LEVEL ONE-CAR GARAGE TO AN EXISTING THREE-STORY SINGLE FAMILY RESIDENCE ON PROPERTY LOCATED WITHIN THE HILLSIDE OVERLAY DISTRICT (R-H) IN THE SINGLE FAMILY RESIDENTIAL (R-1) ZONE AT 459 VIA EL CHICO.

PRE25-00005: NAGY BAKHOUM
(JOHN AND RENEE GROBLEWSKI)

WHEREAS, the Planning Commission of the City of Torrance at its meeting of May 6, 2026, conducted a duly noticed public hearing to consider an application filed by Nagy Bakhoum (John and Renee Groblewski), for a Precise Plan of Development (PRE25-00005) to allow basement, one and two-story additions to an existing three-story single family residence, in conjunction with a Setback Waiver (WAV25-00003), on property located within the Hillside Overlay District (R-H) in the Single Family Residential (R-1) Zone at 459 Via el Chico (APN: 7531-016-054); and

WHEREAS, the Planning Commission on May 6, 2026, approved the project by a roll call vote of 4 to 0; and

WHEREAS, an appeal to the City Council was filed on May 14, 2026; and

WHEREAS, the City Council of the City of Torrance at its meeting of September 1, 2026, conducted a duly noticed public hearing to consider an application filed by Nagy Bakhoum (John and Renee Groblewski), for PRE25-00005 to allow basement, one and two-story additions to an existing three-story single family residence, in conjunction with a Setback Waiver (WAV25-00003), on property located within the R-H in the R-1 at 459 Via el Chico; and

WHEREAS, due and legal publication of notice was given to owners of property in the vicinity thereof and due and legal hearings have been held, all in accordance with the provisions of Division 9, Chapter 5, Article 1 of the Torrance Municipal Code (TMC).

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF TORRANCE FINDS AND DETERMINES THAT:

a) The property is located at 459 Via el Chico;

b) The property is further described as located on Parcel Map as per Book 45, Page 59 of PM Lot 2 (APN 7531-016-054);

c) That additions to single family residences and setback waivers are determined to be Categorically Exempted by the Guidelines for Implementation of the California Environmental

Quality Act (CEQA), Article 19, Section 15301 (e) and 15305 (a);

d) That the project, as conditioned, is in compliance with both the R-1 Zoning and the Low-Density Residential (R-LO) General Plan designation for this site, with the exception of the average front yard setback of 18.13', and the minimum front yard dimension of 14'-9 ¼", for which Setback WAV25-00003 has also been requested in conjunction with this request;

e) That the proposed three-story additions, as conditioned, will not have an adverse impact upon the view, light, air, or privacy of other properties in the vicinity, because the proposed additions have been designed exceeding the east side yard setback adjacent to the neighbor to the east, in order to prevent privacy impacts. No northern, western or southern properties voiced concerns;

f) That the proposed additions, as conditioned, have been located, planned and designed, so as to cause the least intrusion on the view, light, air, or privacy of other properties in the vicinity, because the majority of the additions are located in the far eastern portion of the property, and exceeding the east side yard setback;

g) That the design of the proposed additions provides an orderly and attractive development in harmony with other properties in the vicinity, because the additions will match the exterior materials of the existing home, which are consistent with the current pattern of development in the vicinity;

h) That the proposed additions, as conditioned, have been designed to ensure that the development will not have a harmful impact upon the land values and investment of other properties in the vicinity, because the proposed additions meet and/or exceed the R-1 development standards, except for the aforementioned setback requirements;

i) That the granting of this application, as conditioned, would not be materially detrimental to the public welfare or to other properties in the vicinity, because the project is designed with lower heights than the maximum Code allowance, the highest ridge is existing, located along the center of the home, and the addition's maximum height is lower than the existing home's height, which limit the potential for privacy impairment;

j) That the proposed additions, as conditioned, will not cause or result in an adverse cumulative impact on other properties in the vicinity, because the project would be compatible with the surrounding pattern of development in design and is less than the allowable Floor Area Ratio (FAR);

k) That it is not feasible to increase the size of or rearrange the space within the existing building or structure for the purposes intended, except by increasing the height, because sprawling the additions would eliminate the limited yard space on this irregularly shaped lot, with topographical challenges;

l) That the denial of this request to increase the height will constitute an unreasonable hardship, as the proposed additions do not cause a significant adverse impact to view, light, air or privacy; and

m) That granting this application to increase the height would not be materially detrimental to the public welfare and to other properties in the vicinity, because the project, as conditioned, complies with the development standards of the R-1 Zone, except for the noted setback